

MUTUAL NON-DISCLOSURE AGREEMENT

Governed by the Laws of the State of Florida

This Non-Disclosure Agreement (the "Agreement") is entered into as of this _____ day of _____, _____, by and between:

Disclosing Party / Consultant:	_____, a Florida _____, with offices at _____.
Receiving Party / Client:	_____, a _____, with offices at _____.

Individually referred to as a "Party" and collectively as the "Parties".

1. Purpose

The Parties wish to explore a potential business relationship or engagement (the "Purpose"), including but not limited to the provision of IT consulting, software development, systems integration, or managed services, in connection with which either Party may disclose its Confidential Information to the other Party.

2. Definition of Confidential Information

"Confidential Information" means any non-public information, technical data, or know-how disclosed by one Party to the other, including but not limited to: trade secrets; source code, object code, and software algorithms; system architecture, network configurations, and infrastructure designs; API keys, credentials, and access tokens; research, product plans, customer lists, pricing, financial data, and business strategies; and any information designated as confidential at the time of disclosure. Information disclosed orally shall be considered Confidential Information if identified as such within thirty (30) days of disclosure.

3. Non-Disclosure and Non-Use

Each Party agrees not to use the Confidential Information of the other Party for any purpose other than evaluating or advancing the Purpose. Each Party shall protect such information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. Neither Party shall disclose Confidential Information to any third party without the prior written consent of the disclosing Party, except to its employees, contractors, or advisors who have a need to know and are bound by confidentiality obligations no less restrictive than those herein.

4. Permitted Disclosures

The obligations of Section 3 shall not apply to information that: (a) is or becomes publicly available through no fault of the receiving Party; (b) was rightfully known to the receiving Party prior to disclosure; (c) is independently developed by the receiving Party without use of Confidential Information; or (d) is required to be disclosed by law, regulation, or court order, provided the receiving Party gives prompt written notice to the disclosing Party and cooperates in seeking a protective order.

5. Intellectual Property

Nothing in this Agreement grants either Party any license, title, or ownership interest in the other Party's Confidential Information, intellectual property, source code, or proprietary technology. All pre-existing intellectual property remains the exclusive property of its owner. Any work product or developments created solely in connection with the Purpose shall be addressed in a separate written agreement.

6. Return or Destruction of Information

Upon written request by the disclosing Party, or upon termination of this Agreement, the receiving Party shall promptly return or certifiably destroy all Confidential Information and any copies, notes, or summaries thereof, including data stored electronically. The receiving Party shall provide written certification of destruction upon request.

7. Non-Solicitation

During the term of this Agreement and for a period of _____ thereafter, neither Party shall directly solicit, recruit, or hire any employee, contractor, or consultant of the other Party who was involved in the Purpose, without prior written consent. This restriction does not apply to general employment advertisements not targeted at the other Party's personnel.

8. Term and Termination

This Agreement shall remain in effect for a period of _____ from the date of execution. Either Party may terminate this Agreement upon thirty (30) days written notice. The obligations of confidentiality with respect to Trade Secrets shall survive termination as long as such information remains a trade secret under Florida Statutes § 688.002.

9. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the **State of Florida**. Any disputes arising out of this Agreement shall first be attempted to be resolved through good-faith negotiation. If unresolved within thirty (30) days, disputes shall be adjudicated in the courts of _____, Florida.

10. Miscellaneous

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions or agreements. No amendment shall be valid unless in writing and signed by both Parties. If any provision is found unenforceable, the remaining provisions shall remain in full force. This Agreement may be executed in counterparts, including electronic signatures, each of which shall constitute an original.

By:

By:

Name:

Title:

Date:

Name:

Title:

Date:

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